

Court No. - 29

Case :- WRIT - C No. - 29212 of 2024

Petitioner :- Arun Kumar Kashyap

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rajendra Kumar Pandey, Santosh Kumar Tiwari

Counsel for Respondent :- C.S.C., Pranjali Mehrotra

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

1. Heard learned counsel for the petitioner; learned Standing Counsel for State respondent and Shri Pranjali Mehrotra, learned counsel for Electricity Department.

2. Present writ petition has been preferred for a direction to respondents to grant new Electricity Connection to the portion of House No.52, Bhupendra Puri, Gali No.1, Tiwada Road, Modi Nagar, Ghaziabad in which petitioner is residing with his family and for a further direction to respondents to decide the application of the petitioner dated 21.08.2024 within stipulated period.

3. This much is contended that the petitioner has constructed the house in question on the ancestral plot. The family of the petitioner is residing in second floor of the house and on the ground and first floor, his father and younger brother are residing. There are common electricity connection in the said house, which was being used by all of them. Due to certain dispute arose between the petitioner and his brother, the father of the petitioner has taken side of younger brother. On account of said dispute, the father and brother of the petitioner has disconnected the electricity connection of the portion of the petitioner causing grave hardship to his family. The petitioner has applied separate electricity connection in his name, which was rejected by the respondents on the ground that without no objection of his father, the separate electricity connection cannot be provided to the petitioner.

4. It is contended that electricity is an integral part of right to life, therefor, no one can be deprived from the electricity connection. It is contended that even if there is a family dispute, the electricity department cannot refuse to grant electricity connection to a person, who is demanding electricity connection. Reliance in this regard has been placed upon a Division Bench judgment of this Court in **Gaurav Sharma v. State of U.P & Ors.**, 2019 (2) ADJ 213.

5. Admittedly, the electricity connection is sought by the petitioner being family member. It is worth to mention that supply of electricity monopolized by U. P. Power Corporation is essential for life and it is impossible to live without electricity and the same cannot be negated. The Division Bench of this Court in Writ C No.28295/2014 (**Seema Mansoor vs. U.P. Power Corporation Ltd. and others**) has held that an application for grant of electricity connection cannot be refused by licensee on the ground that there is no consent of the landlord. It is further observed that from the scheme of the Act and the duties cast upon the licensee and right conferred upon the person making application for supply of electrical energy in case he submits indemnity bond, a lessee/tenant or occupier cannot be refused electricity connection merely for want of consent of the landlord. Thus, it is clear that the application of the petitioner can always be considered as per Clause 4.4 read with Annexure 4.2 and Annexure 4.3 of Electricity Supply Code 2005, which provides either for consent letter of owner of the premises or in the absence thereof indemnity bond is to be furnished by the lessee/tenant or occupier of the premises.

6. Considering the facts and circumstances of the case, no useful purpose would be served in keeping the writ petition pending consideration. The writ petition is **disposed of** asking the respondent/competent authority to consider the application of petitioner, if not yet done, in accordance with law and take appropriate decision in four weeks period but certainly after hearing the parties having stake in the matter.

Order Date :- 25.9.2024

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